

Parks and Conservation Areas

Canada is a vast land of extensive natural resources, bountiful flora and fauna, numerous fresh water lakes and coastal riches. To save these gifts for our future generations, Canadian governments have legislated a broad range of regulative measures to protect our lands. This protection comes in many forms: federal (national parks, game sanctuaries, wildlife management areas), provincial (parks, wildlife preserves, conservation areas), municipal (local parks) and at various levels (strictly protected to minimal protection).

Most protected areas are assigned an IUCN, World Conservation Unit, which designates the level of protection given to the area. There are 6 levels. Level 1 is reserved for strictly protected Nature Reserves. Level 2 contains areas of National Park status and equivalent reserves while Level 3 has areas of rare, representative, esthetic or important cultural elements. Activity within these areas is restricted. Level 4 protects Habitat/Species Management Areas but is less strictly regulated and would include restrictions to human activity. Level 5 is Protected Landscape/Seascape and protects areas of human activity from overuse and destruction. Level 6 is the least regulated but provides protection for Managed Resource Protected Areas, which would encompass lands set aside for the preservation of biological diversity.

The federal government has designated 39 national parks and park reserves in Canada. For the national parks system to be complete there should be at least one national park located in each of Canada's 39 natural regions. To achieve this, 14 additional national parks are needed. Work is underway to create these new parks, in co-operation with provinces, territories, Aboriginal Peoples, other federal departments, interest groups, and the public. Currently, the national parks system encompasses about 224 466 km² or about 2% of Canada's land mass. When the system is complete it will cover just over 3% of Canada.

The said tract of land is hereby reserved and set apart as a public park and pleasure ground for the benefit, advantage and enjoyment of the people of Canada, subject to the provisions of this Act and of the regulations hereinafter mentioned, and shall be known as the Rocky Mountains Park of Canada.

Statutes of Canada, 50-51 Victoria, chapter 32

With these words the very first national park was legislated under Sir John A. Macdonald's government in 1887. It is now known as Banff National Park. The main purpose of this first park was to preserve the resort at the Town of Banff, which was established when the Canadian Pacific Railway was built across the Rocky Mountains. Since then, the purpose of legislating national parks has expanded to protecting our natural heritage.

However, national parks are not our only protected lands. Many migratory bird sanctuaries have been designated to preserve the nesting habitat of breeding birds, waterfowl and seabirds. National wildlife preservation areas have also been established to protect the calving grounds of caribou, buffalo and musk ox as well as deer, moose and other large mammals. Recently several marine parks have been designated as protected areas to preserve underwater historic sites of shipwrecks as well as marine biological diversity.

Conservation area protection rights have also been granted to provincial governments. These are mostly in the form of provincial parks (nature reserve zones), wildlife management areas, wildlife preservation areas, conservation area authority, ecological reserves and historic areas.

Some legislative rights extend down to the municipal level in the form of local parks and heritage sites. However, these are minimally protected.

National Park Administration

The birth of a national park is a complex and difficult process. Parks Canada, the federal department within the Ministry of Heritage Canada that is responsible for federal lands, designates land as potential national park sites and oversees the administration, management and control of the parks.

Within five years after the proclamation of a park, Parks Canada must submit a management plan for that park in respect of resource protection, zoning, visitor use, and any other matter that is considered appropriate to Parliament for approval.

The first priority when considering park zoning and visitor use in a management plan is the maintenance of ecological integrity through the protection of natural resources. The plan is reviewed every five years and, where the ministry deems it appropriate, provides opportunities for public participation at the national, regional and local levels in the development of parks policy and management plans. The Minister of Heritage Canada reports to Parliament every two years on the state of the parks and progress towards establishing new parks.

Park wardens are charged with the duty of maintaining the parks. No activity may be carried on in a wilderness area that is likely to impair the wilderness character of the area. They are responsible for park administration, public safety, and the provision of basic user facilities including trails and rudimentary campsites, regulating traditional renewable resource harvesting and permitting access by air to remote parts of the parks under the jurisdiction of the Minister.

Regulations

Regulations are a form of law that state rules that apply generally rather than specifically to a person or thing. Parks mainly consist of public land and park regulations tell us what can and cannot be done with or on these lands. For example, public lands within the parks cannot be used or built upon by individuals for personal use or be sold except by permission of the ministry.

Regulations are made by persons given authority to do so by Parliament. In the case of parks, they may make regulations for

- the preservation, control and management of the parks;
- the protection of the flora, soil, waters, fossils, natural features, air quality and cultural, historical and archaeological resources;
- the protection of the fauna, the taking of specimens thereof for scientific or propagation purposes and the destruction or removal of dangerous or superabundant fauna;
- the management and regulation of fishing, and the protection of fish, including the prevention and remedying of any obstruction or pollution of waterways;
- the prevention and extinguishing of fire on or threatening park lands, and requiring persons residing or being in the vicinity to report any such fire or to assist in its extinguishment;
- the granting, amending and surrender of leases and licences of occupation of public lands **in** towns and visitor centres for the purposes of residence, trade, tourism, schools, churches, hospitals and places of recreation or entertainment, and of public lands in resort subdivisions for the purpose of residence;
- the granting, amending and surrender of leases and licences of occupation of public lands **outside** towns, visitor centres and resort subdivisions for the purposes of tourism, schools,

churches, hospitals, service stations and places for the accommodation, recreation or entertainment of visitors to the parks;

- the granting of permits and licences for activities carried on in parks, in particular,
 - the grazing of horses, mules and donkeys used for recreational purposes in parks,
 - the removal of sand, stone and gravel for construction purposes within a park,
 - the cutting and removal of dead or diseased timber and such green timber as may be necessary for the protection and management of forests in a park,
 - the use in the parks of water for domestic, business and railway purposes, and
 - the use of public camp grounds by persons visiting the parks;
- the administration and use of roads, streets, highways, sidewalks, trails, wharves, docks, bridges, and other ways within the parks,
- the control of traffic on roads, streets and highways and elsewhere within the parks, including the regulation of the speed, operation and parking of vehicles;
- prescribing the conditions under which any building, sign, placard, advertisement or other structure may be erected
- controlling trades, business, amusements, sports, occupations and other activities or undertakings and prescribing the places where any such activities or undertakings may be carried on, and the levying of licence fees in respect thereof;
- the summary removal from a park and the preventing of the return to a park of any person guilty of a contravention of such provisions of the Park Regulations or the *Criminal Code* as the Governor in Council may specify;
- the preservation of public health and prevention of disease;
- the abatement and prevention of nuisances;
- the survey of public lands in parks, the making of plans of surveyed lands, the delimitation in such plans of the boundaries of towns, resort subdivisions, visitor centres and cemeteries, the designation of surveyed lands as towns, resort subdivisions or visitor centres and the subdividing of lands so designated;
- the control of traditional renewable resource harvesting activities
- the acquisition or disposition of prehistoric and historic objects and of reproductions thereof, and the sale of publications, souvenirs and consumer articles;
- the control of domestic animals brought into parks, including the impounding or destruction of such animals found at large;
- public safety and the control of firearms within parks;
- the control of aircraft access to national parks.

Offences, Punishment and Procedure

In order to enforce regulations within our parks, wardens are given the authority to charge offenders. If found guilty, offenders can be fined or imprisoned as follows:

Every person who is guilty of an offence against regulations can be liable to a fine not exceeding **two thousand** dollars.

Subject to the regulations, every person who, in a park, hunts, disturbs, confines or is in possession of wildlife of any species included in List 1 (below) or who is in possession either in or outside a park of such wildlife killed or captured in a park, is guilty of an offence and liable to a fine not exceeding **one hundred and fifty thousand** dollars; or to imprisonment for a term not exceeding six months or to both.

List 1 THREATENED SPECIES

Bighorn Sheep
Dall's Sheep
Grizzly Bear
Gyrfalcon
Mountain Goat
Peregrine Falcon
Piping Plover
Polar Bear
Whooping Crane

Subject to the regulations, every person who, in a park, hunts, disturbs, confines or is in possession of wildlife of any species included in List 2 (below), or who is in possession either in or outside a park of such wildlife killed or captured in a park, is guilty of an offence and liable to a fine not exceeding **ten thousand dollars**; or to imprisonment for a term not exceeding six months or to both.

List 2 PROTECTED SPECIES

American Bison
American Elk (Wapiti)
Atlantic Salmon
Black Bear
Caribou

Cougar (Mountain Lion)
Moose
Whooping Crane
White – Tailed Deer
Wolf

Definitions

"hunt" means to kill, injure, trap or capture, to attempt any of the foregoing or to stalk with a weapon;

"wildlife", in relation to a species, includes any part of an individual of the species or an egg thereof.



Where any substance capable of degrading the natural environment, injuring the flora or fauna or endangering human health is discharged or deposited within a park, any person who has charge or control of the substance shall take reasonable measures to prevent any degradation of the environment and any danger to the flora or fauna or to persons resulting there from. That person shall be deemed responsible for complete restitution.

(The preceding text is adapted from the National Parks Act- Part I)

NATIONAL PARKS AND NATIONAL PARK RESERVES OF CANADA

Following are the national parks and national park reserves scheduled in the *National Parks Act*, its amendments or other Acts of Parliament.

For additional information, current bills (especially Bill C-27) or park boundaries refer to WWW.parkscanada.pch.gc.ca/Library/acts/acts_e.htm

ALBERTA

- (1) Banff National Park
- (2) Jasper National Park
- (3) Waterton Lakes National Park
- (4) Elk Island National Park
- (5) Wood Buffalo National Park

BRITISH COLUMBIA

- (1) Yoho National Park
- (2) Kootenay National Park
- (3) Glacier National Park
- (4) Mount Revelstoke National Park
- (5) Gwaii Haanas National Park Reserve
- (6) Pacific Rim National Park Reserve.

SASKATCHEWAN

- (1) Prince Albert National Park
- (2) Grasslands National Park

MANITOBA

- (1) Riding Mountain National Park
- (2) Wapusk National Park

ONTARIO

- (1) Point Pelee National Park
- (2) St. Lawrence Islands National Park
- (3) Georgian Bay Islands National Park
- (4) Bruce Peninsula National Park
- (5) Pukaskwa National Park

NEW BRUNSWICK

- (1) Fundy National Park
- (2) Kouchibouguac National Park

PRINCE EDWARD ISLAND

- (1) Prince Edward Island National Park

NOVA SCOTIA

- (1) Cape Breton Highlands National Park
- (2) Kejimikujik National Park

NEWFOUNDLAND

- (1) Terra Nova National Park
- (2) Gros Morne National Park

QUEBEC

- (1) Forillon National Park
- (2) La Mauricie National Park
- (3) Mingan Archipelago National Park Reserve

YUKON TERRITORY

- (1) Northern Yukon (Ivvavik) National Park
- (2) Kluane National Park and National Park Reserve
- (3) Vuntut National Park

NORTHWEST TERRITORIES

- (1) Nahanni National Park Reserve
- (2) Aulavik National Park
- (3) Tuktoyaktuk National Park

NUNAVUT

- (1) Auyuittuq National Park Reserve
- (2) Quttinirpaaq (Ellesmere Island) National Park
- (3) Sirmilik (North Baffin Island) National Park

Provincial Parks

Another level of protection afforded our conservation areas is Provincial Parks. All provinces and territories in Canada have legislation to assess statutory needs for provincial parks and ecological reserves. For expediency, we will refer only to Ontario's legislation. Ontario currently has 107 provincial parks open to the public and another 165 parks that have been set aside to protect significant heritage values and to ensure outdoor recreational opportunities for future generations.

The Planning and Research Sections of Ontario Parks and the Nature Conservancy of Canada designate conservation areas in an innovative partnership called Ontario Parks Legacy 2000. Their job is:

- completing Ontario's system of parks and protected areas;
- recognizing the land use planning needs of the resource-based tourism industry;
- providing the forest, mining, and other resource industries with greater land and resource use certainty; and
- enhancing angling, hunting and other Crown land recreation opportunities.

Ontario's Provincial Park Planning and Management Policies establish size and distribution criteria for wilderness, natural environment and waterway classes of parks. They also establish specific targets for representing the earth science, life science, and cultural and recreational features of the province. Collectively the parks are established to protect a representative system of Ontario's diverse natural, cultural and recreational landscape.

Ontario's Provincial parks fall within the following classes:

WILDERNESS CLASS PARKS

The target for wilderness class parks is to establish one wilderness park, or equivalent sized national park, and one complementary wilderness zone in each of Ontario's 13 site regions. Wilderness parks should exceed 100,000 hectares, while zones should be greater than 2000 hectares in size. Due to extensive incompatible use, true wilderness can no longer be found in the province's two southernmost site regions.

An assessment shows that nine of 11 wilderness park targets and five wilderness zone targets have been met. Recent actions taken to complete Ontario's system of wilderness parks include: the creation of new wilderness zones in Algonquin (25,000 hectares), The Massasauga (3,178 hectares) and Missinaibi (21,375 hectares) provincial parks. Public discussions on expanding Wabakimi and Polar Bear Provincial Parks have also been initiated.

NATURAL ENVIRONMENT CLASS PARKS

The target for natural environment class parks is to establish one 2000 hectare park, or an equivalent size wilderness zone, in each of Ontario's 65 site districts. A preliminary assessment shows that 56 of 65 natural environment class park targets have been achieved. Parks in 16 of 56 site districts, however, fall short of the minimum 2000 hectare size criteria for natural environment parks.

Recent actions taken to complete this component of the park system include the regulation of Nakina Moraine and Kenny Forest Provincial Parks. New regulations also have been proposed to establish Blue Jay Creek Provincial Park and to expand Charleston Lake and Wakami Lake Provincial Park.

WATERWAY CLASS PARKS

The target for waterway class parks is to establish one waterway park, or an equivalent waterway corridor, traversing each of Ontario's 65 site districts. Assessment shows that 37 of 65 waterway class park targets have been achieved. Waterway park target achievement is high in the north and low in the southern regions of the province.

Recent actions taken to complete this component of the park system include the expansions of Missinaibi, La Verendrye and Brightsands provincial parks and the nomination of the Grand River as a Canadian Heritage River.

NATURE RESERVE CLASS PARKS

Targets for nature reserve class parks are defined by scientific based earth science and life science classifications. Nature reserves are selected to represent natural features and ecosystems not found in the other park classes. Currently, 88 provincial nature reserves and 263 nature reserve zones in other park classes incorporate 381,039 hectares of lands and waters. Inventories show that about one half of all desired earth science and life science features and ecosystems have been secured by provincial parks. Recent action taken includes putting forward regulations for 10 new provincial nature reserves incorporating more than 58,000 hectares of lands and waters.

HISTORICAL CLASS PARKS

Targets for historical class parks are defined by an archeologic- and historic-based classification. Historical parks are selected to represent cultural features and themes not found in other park classes. Inventories show that less than one half of all desired cultural resources have been secured by provincial parks. Considerable research and inventory is now needed to determine the future needs for this component of the provincial park system.

RECREATION CLASS PARKS

The target for recreation class parks is to provide residents and out of province visitors with appropriate levels of day use and facility-based camping opportunities. The selection (and operation) of recreation parks and the provision of outdoor recreation opportunities are related to regional population distribution and demands.

Today, there are 71 recreation class parks incorporating 39,570 hectares of lands and waters. These parks are being re-evaluated to determine whether they adequately satisfy current outdoor recreation

To provide visitors with appropriate levels of day use and facility-based camping opportunities, land is reserved for *recreational class* parks. These are generally found in the more populous areas of the province relatively close to cities and good transportation routes. They typically have good beaches, campgrounds and outdoor recreation opportunities. These parks have high human impact facilities such as showers, toilets, boat launch facilities, hiking trails and interpretive programs as well as playgrounds and picnic tables.

Links to Information on Provincial parks

British Columbia www.elp.gov.bc.ca/bcparks

be sure to check out the facts & figures

www.swparks.com/canada/british_columbia.html

parks in British Columbia

www.elp.gov.bc.ca/bcparks/explore/regions.htm

good description of what constitutes an ecological reserve and their purpose

Alberta www.gov.ab.ca/aboutalberta/

for facts & figures

www.seealberta.com/map/mapmain.htm

in Alberta excellent description of national parks and includes maps of Alberta

www.gov.ab.ca/env/fw/threatsp/index.html

to learn about threatened species in Alberta

www.gov.ab.ca/env/fw/view/

areas where threatened species are located (includes maps)

Saskatchewan www.serm.gov.sk.ca/parks/

explore this excellent site including ecoregion information.

Ontario www.ontarioparks.com

Go to EXPLORE to find info on provincial parks, lots of supporting info at this site

Quebec <http://www.fapaq.gouv.qc.ca/>

information on Wildlife and Quebec's provincial parks

www.tourisme.gouv.qc.ca/anglais/tourisme_a/profils_a/nature_a.html

natural areas in Quebec

New Brunswick www.tourismnbcanada.com/web/english/outdoor_network/default.htm

describes parks and natural sites of New Brunswick

PEI www.gov.pe.ca/visitorsguide/explore/parks/index.php3

good location map of PEI parks

Nova Scotia www.explore.gov.ns.ca/great_outdoors/parks.htm

lots to explore on this site

Yukon www.touryukon.com

info on wildlife and natural geography, excellent photos,

www.renres.gov.yk.ca

excellent source of info on protected areas and special places, facts and figures

Yukon, Nunavut, NWT www.newparksnorth.org/index.htm

great map of these territories with info on protected areas, parks, reserves, historical sites

NWT www.gov.nt.ca/research/facts/visiting.html

general info on national parks in NWT

Other Protected Areas

Migratory Bird Sanctuaries

Areas specific to nesting sites for migratory birds and waterfowl are designated as Migratory Bird Sanctuaries. Regulations prohibit all disturbance, hunting and collection of migratory birds and their eggs within these sanctuaries. Protection is only provided to the birds actually present in the sanctuary and not to their habitat. About a third of these migratory bird sanctuaries are located on federal land. They are also located on private or provincial land or any combination of land ownership.

Wildlife Management Areas

These are tracts of Crown land set aside to provide an abundance and diversity of wildlife habitat. There are three types of wildlife land: *refuges* where trapping or hunting of certain wildlife species is prohibited; *public shooting grounds* are areas set aside for recreational hunting; and *wildlife management areas* which are used as both refuge and hunting ground as required to manage wildlife use and productivity.

National Wildlife Areas

National wildlife areas are established on land either owned or leased for long periods of time by the federal government. It provides protection to preserve essential habitat for migratory bird species. In some cases, this protection is extended to endangered wildlife species.

World Heritage Sites

The World Heritage Convention, adopted by the 1972 Unesco General Assembly, provides for the designation of natural and man-made sites of “outstanding universal value” as World Heritage Sites. International sites include the Great Barrier Reef in Australia, the Grand Canyon in the USA, the Pyramids of Giza in Egypt and the Taj Mahal in India. In Canada, seven natural sites have been designated. They are

- Gros Morne National Park
- Kluane National Park Reserve
- Wood Buffalo National Park
- Nahanni National Park Reserve
- Dinosaur Provincial Park
- Canadian Rocky Mountains (including Banff, Jasper, Waterton, and Glacier National Parks, the Burgess Shale deposits in Yoho National Park and adjacent provincial parks in B.C.)

RAMSAR Sites

The Ramsar Convention, the Convention on the Conservation of Wetlands of International Importance, was drafted in 1971 in the city of Ramsar, Iran, and is administered by a secretariat located at the headquarters of the World Conservation Union (IUCN). The convention provides international recognition to a designated site. There are currently 30 Ramsar sites in Canada and 450 worldwide. Most of these sites are afforded some form of legal protection under federal or provincial legislation. Examples include Point Pelee National Park and two sites in Wood Buffalo National Park.

Ecological Integrity

The *Panel on the Ecological Integrity of Canada's National Parks* states that “we measure the state of ecological integrity by examining three key aspects: biodiversity, ecosystem functions and stressors.”

Biological diversity or *biodiversity* refers to the variety of life within any system. This can relate to the landscape, the species of plants and animals, and to the genetic diversity. Landscape is important because different habitat supports different types of life form species. A variety of plants and animals are important to sustain the food chain. However, within any given species the genetic diversity is what allows the species to adapt to changing conditions and resist diseases or infestations.

Ecosystem functions are those factors that maintain an ecosystem and permit it to evolve. These include both natural and man-made succession (order of growth) and retrogression (destruction). Disturbances caused in nature such as insect epidemics, flooding, fire, grazing and windstorms cause destruction to an ecosystem. However, this forced change in the ecosystem often brings adaptation and regeneration of a new life cycle. For example both natural regrowth after a fire or replantation by human forces.

Ecological stressors are those forces that effect both biodiversity and ecosystem functions. Stressors can come in the form of habitat fragmentation, human land use patterns, invasion of exotic vegetation or pollution and impact according to their intensity. For example, a stressor is only significant if it has a definite ecological impact, it affects a significant area or it is constant or increasing in intensity.

The following table is taken from the “Assessing Ecological Integrity” Report mentioned above.

Indicators for Assessing Ecological Integrity		
Biodiversity ⁽¹⁾	Ecosystem Functions ⁽²⁾	Stressors ⁽³⁾
Species richness - change in species richness - numbers and extent of exotics Population Dynamics - mortality/natality rates of indicator species - immigration/emigration of indicator species - population viability of indicator species Trophic structure - size class distribution of all taxa - predation levels	Succession/retrogression - disturbance frequencies and size (fire, insects, flooding) - vegetation age class distributions Productivity - landscape or by site Decomposition - by site Nutrient retentions - Ca, N by site	Human land-use patterns - land use maps, roads, densities, population densities Habitat fragmentation - patch size inter-patch distance for interior Pollutants - sewage, petrochemicals, etc. - long-range transportation of toxics Climate - weather data - frequency of extreme events Other - park specific issues

Assessing Ecological Integrity, Panel on the Ecological Integrity of Canada's National Parks,
Parks Canada Web site: www.ecolog.org/toward_ei_e/indicateur_e.htm